

this decision, that it was sustainable on the ground that the term "strict settlement" without more was understood in accordance with the common form of such instruments to imply estates for life without impeachment of waste (*f*).

35. **Concurrence of all the cestuis que trust.** — If the parties beneficially interested are under no disability and can agree together as to the disposition of the fund before investment or of the estate after investment, the trustees will be bound to obey their joint wishes, and must deal with the property in the manner directed by their joint order.

(*f*) *Davenport v. Davenport*, 1 H. & M. 779.

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